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DONALD F. BURKE, ESQ.

Certified by the New Jersey Supreme Court as a Civil Trial Attorney

Member of the Bars of New Jersey & New York

DONALD F. BURKE JR., ESQ.

Member of the Bars of New Jersey & New York

March 1, 2018

VIA FEDERAL EXPRESS

Federal Maritime Commission

800 North Capital Street, N.W.

Washington, D.C. 20573-0001

Re: Port Elizabeth Terminal & Warehouse Corp. v. Port Authority of New York
and New Jersey.

Federal Maritime Commission

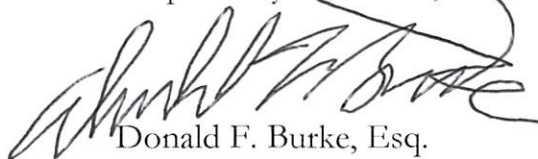
Docket No.: 17-07

Dear Sir/Madam,

Enclosed please find an original and five copies of Complainant Port Elizabeth Terminal & Warehouse Corp.'s Motion to Extend Discovery in the above referenced matter.

Thank you.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Donald F. Burke', is written over the typed name.

Donald F. Burke, Esq.

Enclosures

cc: Juan Barragan, Esq., VIA FEDERAL EXPRESS

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.,
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY,
RESPONDENT**

NOTICE OF MOTION TO EXTEND DISCOVERY

MOTION BY: Complainant Port Elizabeth Terminal & Warehouse Corp.

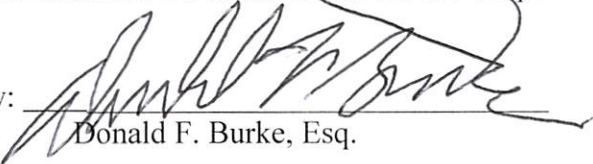
DATE, TIME & PLACE OF HEARING: As set forth by the Presiding Officer.

SUPPORTING PAPERS: Certification of Donald F. Burke, Esq., Counsel for Complainant Port Elizabeth Terminal & Warehouse Corp.

RELIEF REQUESTED: For an order extending the discovery end date to April 20, 2018

ANSWERING AFFIDAVITS: Answering affidavits and any notice of cross-motions with supporting papers must served within seven days pursuant to 46 C.F.R. §502.71(c).

LAW OFFICE OF DONALD F. BURKE
Attorney for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By: 

Donald F. Burke, Esq.

Dated: March 1, 2018

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**CERTIFICATION OF COUNSEL IN SUPPORT OF MOTION O EXTEND
DISCOVERY**

I, Donald F. Burke, Esq., Counsel for Complainant, Port Elizabeth Terminal & Warehouse, Corp. ("PETW"), hereby certify as follows:

1. PET&W seeks through this motion an extension of discovery to April 20, 2018.
2. Counsel for the Port Authority of New York and New Jersey ("PANYNJ") has not agreed to file this motion jointly, therefore, this motion is being submitted by Complainant PET&W.
3. The facts upon which the motion is based are as follows:
 - a. On September 19, 2017, a Scheduling Order was issued for this matter.
 - b. The Scheduling Order set forth the deadlines for the Parties to exchange initial discovery demands and responses, identify their respective experts, complete discovery, and file briefs.
 - c. The Initial Scheduling Order also set the discovery end date for this matter for January 16, 2018.
 - d. At that point, the Parties had exchanged their initial discovery demands and responses and had identified their respective economic experts, and produced

their economic expert reports.

- e. A motion was filed seeking to extend discovery approximately 90 days, to April 16, 2018.
- f. By Order dated January 23, 2018, the Court extended discovery to March 2, 2018.
- g. The parties have completed depositions of the PANYNJ's designated representative and the depositions of Patrick Wynne and Michael Morrow of PET&W.
- h. At his deposition, the PANYNJ's designated representative testified regarding relevant records and documents which have not been produced by PANYNJ.
- i. This includes the following:
 - i. The RFPs that went out with regard to building 1400 and the LaFarge group of buildings.
 - ii. Sign in sheets conducted related to the inspections in conjunction with the RFPs for building 1400 as well as the LaFarge group of buildings.
 - iii. Responses to the RFPs regarding building 1400 as well as the LaFarge group of buildings.
 - iv. Lease agreement between the port authority and Columbia Coastal for the property PET&W's proposed to use as a state-of-the-art warehouse facility (CenterPoint proposal).
 - v. Correspondence between the port authority and PNCT regarding space lease to pee T&W provided to PNCT and then subleased by the port authority and PNCT to PET&W.
 - vi. Monthly reports regarding Port Authority tenants in arrears from 2010 to present as testified to by the designated witness.
 - vii. Settlement Agreements between the PANYNJ and
 - 1. PNCT,
 - 2. FAPS,
 - 3. AWI/ASI,
 - 4. Other tenants from 2008 to present.

viii. Correspondence regarding transfer of property held by PET&W to PNCT including the arrangement regarding the properties subleased to PET&W by PNCT with the concurrence of PANYNJ. This to include correspondence regarding rent owed.

j. PANYNJ has been requested to produce the above documents but has not yet done so.

k. Further, PET&W seeks a subpoena to take the deposition of a 30(b)(6) deposition of Port Newark Container Terminal (“PNCT”).

l. PNCT is one of the entities the PANYNJ is unduly favoring to the detriment of PET&W according to plaintiff’s Verified Complaint.

m. PET&W needs additional time to complete obtain outstanding discovery from the PANYNJ and take the depositions of non-party witnesses.

4. “The primary measure of good cause is the movant’s diligence in attempting to meet the order’s requirements.” *Rahn v. Hawkins*, 464 F.3d 813, 822 (8th Cir. 2006); *see also* Fed. R. Civ. P. 16(b), advisory committee note (1983 Amendment) (“[T]he court may modify the schedule on a showing of good cause if it cannot reasonably be met despite the diligence of the party seeking the extension.”).

5. “[A] finding of good cause depends on the diligence of the moving party.” *Parker v. Columbia Pictures Indus.*, 204 F.3d 326, 340 (2d Cir. 2000) (internal quotation and citations omitted).

6. “Good cause is demonstrated by a showing that despite its having exercised diligence, the applicable deadline could not have been reasonably met by the plaintiff” *Soroof Trading Dev. Co. v. GE Microgen, Inc.*, 283 F.R.D. 142, 147 (S.D.N.Y. 2012).

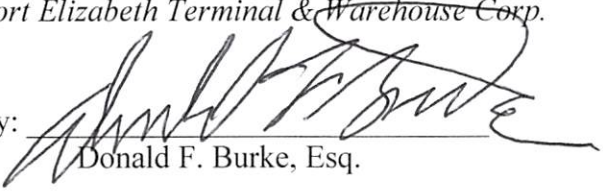
7. Here, good cause to extend the discovery end date exists because the Parties have been diligent in attempting to meet the requirements of the September 19, 2017 and January 23,

2018 Scheduling Orders as set forth above.

8. For the foregoing reasons, Complainant respectfully submits that good cause exists for Your Honor to extend the discovery end date by to April 20, 2018.

The undersigned certify that the foregoing statements are true and are aware that if any of the foregoing statements are willfully false, they are subject to punishment.

LAW OFFICE OF DONALD F. BURKE
Attorney for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By: 

Donald F. Burke, Esq.

Dated: March 1, 2018

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT**

v.

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

CERTIFICATION OF SERVICE

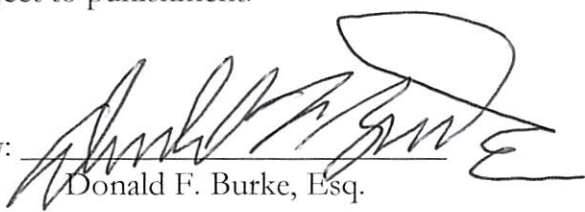
I, Donald F. Burke, Esq., of full age, do certify as follows:

1. A copy of Complainant Port Elizabeth Terminal & Warehouse Corp.'s

Motion to Extend Discovery has been served as follows:

Juan Barragan, Esq.
The Port Authority of New York and New Jersey
4 World Trade Center
150 Greenwich Street
New York, New York 10007

I certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

By: 

Donald F. Burke, Esq.

Dated: March 1, 2018